IN THE CIRCUIT COURT HELD AT ACHIMOTA, ACCRA ON WEDNESDAY, THE 30TH DAY OF APRIL, 2025 BEFORE HER HONOUR AKOSUA ANOKYEWAA ADJEPONG (MRS.), CIRCUIT COURT JUDGE

CASE NO.: D4/023/23

THE REPUBLIC

VRS

WILLIAM BOATENG

ACCUSED PERSON PRESENT

A.S.P. STEPHEN AHIALE FOR THE REPUBLIC PRESENT

GRACE YANNEY HOLDING THE BRIEF OF YVONNE AMEGASHIE, ESQ. FOR THE ACCUSED PERSON PRESENT

JUDGMENT

THE CHARGE

The accused person herein has been arraigned before this Court charged with the offence of Stealing contrary to ***Section 124(1) of the Criminal and Other Offences Act, 1960 (Act 29)***.

THE PLEA

The accused person pleaded not guilty after the charge had been read and explained to him in the Twi language, being his language of choice.

FACTS

The brief facts of the case as presented by the prosecution are that, the complainant Arnold Afari is an insurance practitioner residing at Agyen Kotoku whilst accused William Boateng is an auto-mechanic residing at Sowutuom. On 29/11/2022 about 4:30pm, complainant gave an amount of GHS19,000.00 to accused to buy a brand-new engine and fix it in his Mitsubishi L200 car with registration number GE 2074-15, colour blue black in the presence of Simon Lordisford Nuertey a witness in this case. On 17/05/2023 about 10:00am, complainant went to accused's mechanic shop for his car and realized accused did not buy the engine and went into hiding. Accused was subsequently arrested and in his caution statement, he admitted not buying a new engine but bought second hand engine parts to fix the old car engine and couldn't account for the expenses made. Accused was charged with the offence and brought before this Honourable Court.

The prosecution called two witnesses in support of its case.

EVIDENCE OF PW1

From the evidence in chief of PW1 who gave his name as Arnold Afari, he is an insurance practitioner residing at Adjen Kotoku. That on the 29th November 2022, he gave the accused person, Mr. William Boateng, the amount of GHS19,000.00 to buy an engine into

his Mitsubishi L200 Pickup. That all efforts to get the accused person to do that proved futile. PW1 continued that on the 17th May 2023, they met at the Tesano Police Station where accused called someone on phone and the person confirmed to the hearing of all members present namely Chief Inspector Rashid, Chief Inspector Avevor and Mr. Philip Owusu-Yeboah that the accused person has bought a new engine with him and asked the accused person why he has not come for the engine all this while. That the accused person was to go for the engine on Saturday 20th May 2023 together with them (Arnold and Philip).

According to PW1, based on the call accused made to the supposed engine seller, accused promised at the police station that he will fix his car by 25th May 2023 in an undertaking which is attached as evidence. That all efforts to reach the accused person after the 25th May 2023 were not successful. That the accused, however through a friend informed him that he was sick and was at a prayer camp at Bawjiase.

PW1 further testified that he later got to know that the accused was in police custody at the Achimota Police Station where he rushed to, in the company of Chief Inspector Avevor and they met and had a chat with the accused person. The accused was bailed on 31st May 2023. That the accused person promised to fix his car a week after he was bailed. He continued that on 8th June 2023, accused invited him to the shop to have a discussion with him about the car. That he went in the company of Mr. Kingsley Afari where the accused said he was having a challenge with decoupling the old engine from the gear box but that he had decoupled it now. At the meeting, accused promised to go for the engine by the close of business the next day on 9th June 2023.

According to PW1, the accused was neither picking his calls nor returning them days after the meeting. That he could call him 100 times in a day, some of which indicated that the accused was on call, but he never responded to them. That he officially lodged the case at the Tesano Police Station on 3rd July 2023 where the accused was picked up by the police and the police took the accused to the workshop to investigate his claim. That he

then requested for his car and made it known to both the police and the accused person that he was towing his car.

PW1 further testified that the accused person confirmed to the police that he did not buy an engine and requested for a week to start refunding his money. That they met at the police station on the 11th July where the accused claimed that he was repairing his engine instead of buying a new one.

EVIDENCE OF PW2

PW2, who is the investigator herein testified that he is No. 59485 D/Const. Bright Yeboah of Tesano Police Station CID. That he knows the complainant Arnold Afari and witness Simon Lordisford Nuertey as well as the accused William Boateng. That on 26/06/2023, the complainant who is an insurance practitioner residing at Adjen Kotoku came to the station and reported that on 29/11/2022, he gave an amount of GH¢19,000.00 to accused William Boateng in Paraku Estate in the presence of witnesses to buy a secondhand engine and fix in complainant's car, a Mitsubishi L200 with registration number GE 2074-15. That the accused failed to buy the engine and made use of the money.

That on 26/06/2023, the complainant led police to accused person's mechanic shop at Paraku Estate and identified him. The accused was arrested and detained to assist investigation. That investigation caution statement was obtained from the accused person. PW2 tendered same as exhibit 'A'. He continued that he extended his investigation to accused person's mechanic shop together with complainant where the complainant identified a blue-black Mitsubishi L200 car with registration number GE 2074-15 that was parked at the shop as his own and the accused person confirmed same. He inspected the car and found out that both the engine and the gearbox were removed from it and kept outside.

According to PW2, investigation revealed that on 29/11/2022, the complainant bought a blue-black Mitsubishi L200 with registration number GE 2074-15 which was parked at

the accused person's mechanic shop at Paraku Estate. The accused person demanded and collected GH¢19,000.00 to buy a secondhand engine to replace the old engine which was faulty. The accused person, after collecting the money from the complainant did not buy the engine but also, he claimed he repaired the old engine, meanwhile investigation revealed that accused did not repair the old engine but appropriated the complainant's money.

PW2 concluded that after close of investigation, the accused person was charged with the offence. He tendered charge statement of the accused person in evidence as exhibit 'B'.

Prosecution thereafter closed its case.

After the close of prosecution's case, the Court delivered a ruling that a prima facie case had been made out against the accused person and he decided to give evidence on oath.

EVIDENCE OF THE ACCUSED PERSON

In opening his defence, the accused person herein gave evidence by relying on his 76 paragraphed Witness Statement. The defence of the accused person is basically to the effect that the complainant instructed him to look for a home used engine to replace a damaged engine in a vehicle he was about to purchase. That he bought the said engine but the purchase of the car took long therefore he could not go for the engine to fix same in the car. That when the complainant eventually bought the car and he examined the engine in it, he realized it was not totally damaged and that he could fix it so he rather decided to fix same. That the complainant was fine with that decision for them to go for the money used to purchase the engine.

That in the course of waiting for the said engine to be fixed in the complainant's car he gave his car for the complainant to use and he sold same. That when he started to work

on the engine the complainant reported him to the police station and he was arrested but the police did not listen to his side of the story.

According to the accused person he did not dishonestly appropriate the complainant's sum of GHS19,000.00 as the sum of money he has in his possession is GHS14,000.00 and the complainant is aware of same.

The accused person called two witnesses who corroborated his testimony in his defence.

Thereafter the defence of the accused person was closed.

LEGAL ISSUE

The legal issue to be determined by this Court is whether or not the accused person herein did dishonestly appropriate cash the sum of GHS19,000.00, being the property of one Arnold Afari.

BURDEN AND STANDARD OF PROOF

A fundamental principle of our criminal justice system is that a person accused of a crime is presumed innocent until he has pleaded guilty or proven guilty. It is trite learning that in criminal cases, the prosecution bears the burden to prove the guilt of the accused person beyond reasonable doubt.

See ***sections 11(2), 13(1) and 15*** of the Evidence Act, 1975, (NRCD 323).

In the case of ***Gligah & Attiso v. The Republic [2010] SCGLR 870***, the Supreme Court held as follows;

> *"Under article 19 (2) (c) of the 1992 constitution, everyone charged with a criminal offence was presumed innocent until the contrary is proved. In other words, whenever an accused*

person was arraigned before any Court in any criminal trial, it was the duty of the prosecution to prove the essential ingredients of the offence charged against the accused person beyond reasonable doubt. The burden of proof was therefore on the prosecution and it was only after a prima facie case had been established by the prosecution that the accused person would be called upon to give his side of the story."

The burden on the accused person, when called upon to enter his defence, is to raise a reasonable doubt in the case of the prosecution. The standard of proof for the defence is proof on a balance of probabilities.

In the case of ***Osae v. The Republic [1980] GLR 446,*** the Court held that:

"although it was settled law that where the law cast the onus of proof on the accused, the burden on him was lighter than on the prosecutor, and the standard of proof required was the balance of probability, if at any time of the trial, the accused voluntarily assumed the onus of proving his defence or some facts as happened in this case, the standard he had to discharge was on a balance of probabilities."

ANALYSIS

Section 124(1) of Act 29 provides that:

"Whoever steals shall be guilty of a second-degree felony."

Section 125 of Act 29 defines Stealing as follows:

"*A person steals if he dishonestly appropriates a thing of which he is not the owner*".

In the case of ***Brobbey & Others v The Republic*** **[1982-83] GLR 608-616,** Twumasi J. stated as follows:

"Three essential elements of the offence of stealing become obvious and they are:

1. That the person charged must have appropriated the thing allegedly stolen.
2. That the appropriation must have been dishonest.
3. That the person charged must not be the owner of the thing allegedly stolen."

Section 122 (2) of Act 29 defines Appropriation as follows:

> *"An appropriation of a thing in any other case means any moving, taking, obtaining, carrying away, or dealing with a thing, with the intent that some person may be deprived of the benefit of his ownership, or of the benefit of his right or interest in the thing, or in its value or proceeds, or any part thereof".*

From the testimony of PW1 and PW2, the complainant gave the accused person, the amount of GHS19,000.00 to buy an engine into his Mitsubishi L200 Pickup. That all efforts to get the accused person to do that proved futile. That on the 17th May 2023, they met at the Tesano police Station where accused called someone on phone and the person confirmed to the hearing of all members present namely Chief Inspector Rashid, Chief Inspector Avevor and Mr. Philip Owusu-Yeboah that the accused person has bought a new engine with him and asked the accused person why he has not come for the engine all this while. That the accused person was to go for the engine on Saturday 20th May 2023 together with them (Arnold and Philip). That based on the call accused made to the supposed engine seller, accused promised at the police station that he will fix his car by 25th May 2023 however all efforts to reach the accused person after the 25th May 2023 were not successful. That he officially lodged the case at the Tesano Police Station on 3rd July 2023 and the accused person confirmed to the police that he did not buy an engine and requested for a week to start refunding his money. That they met at the police station on the 11th July where the accused claimed that he was repairing his engine instead of buying a new one.

Under cross examination, PW1 testified that the accused person was to buy an engine for which he took money from him, that he was not involved in his dealings with the company about the sale of the said vehicle. He also testified that since 29th November 2022 that he paid the money he had requested to see the engine the accused has used his money to purchase but till date the accused has not shown him. He further testified that after the accused person took his money on 29th November 2022 and all efforts for him to look at the engine proved futile, and on 17th May 2023 when he met the accused person with named witnesses, the accused placed a call to someone and the first statement the person made was 'you have bought an engine and you will not come for it'.
PW1 further testified under cross examination that he cannot confirm who that person on the phone with the accused person was, because the accused person confessed to the police that he never bought the engine.

The evidence of PW2 is basically to the effect that, his investigation revealed that on 29/11/2022, the complainant bought a blue-black Mitsubishi L200 with registration number GE 2074-15 which was parked at the accused person's mechanic shop at Paraku Estate. The accused person demanded and collected GHS19,000.00 to buy a secondhand engine to replace the old engine which was faulty. The accused person, after collecting the money from the complainant did not buy the engine but also, he claimed he repaired the old engine, meanwhile investigation revealed that accused did not repair the old engine but appropriated the complainant's money.
PW2 tendered exhibits 'A' and 'B' as stated above. I reproduce the relevant part of exhibit 'A' as follows:

> *"… and the company told him it will sell it to him GHS35,000.00 so we paid the company remaining GHS19,000.00 so he told me to find new engine into the car and I went to Kokrope and bought a new engine at GHS20,000.00 but due to the delay of the company the person I bought the engine from resale it to another customer and I*

gave my car Hyundai Fit colour white and yellow with registration number I don't remember to the complainant and he sold the car an amount of GHS15,000.00. So I told him I will fix the engine for him. …"

From the above statement given by the accused person to the police which is in evidence, it is obvious that he was supposed to buy a new engine and fix same into the complainant's vehicle but he claimed he bought it and same had to be resold because of the delay by the company to make the car available.

PW2 under cross examination testified that he did not follow up with the spare parts dealer during his investigation to ascertain whether or not he had received any money from the accused person to purchase the engine because the accused person was not able to identify any spare parts dealer or the receipts of the items he bought from the dealer. Therefore, as an investigator he could not extend his investigation to the said dealer.

From the evidence adduced by the prosecution witnesses, the prosecution have been able to make out a case against the accused person as to the purchase of the engine the accused person took the complainant's money to buy for him but he could not give account as to the kind of engine he bought and where he even bought the engine from, since he could not show the complainant the said engine he claimed to have bought with the complainant's money.

From the evidence adduced by the prosecution witnesses, the accused person acknowledged that, he had the complainant's money to find a new engine to fix in the complainant's car therefore the court made a finding that the accused person had a case to answer. The accused person had a duty to explain to the court as to what he used the

complainant's money for, to enable the court determine if there was any dishonest appropriation of the money given to him by the complainant.

In his defence, the accused person testified to the effect that he bought the engine for the said vehicle but due to the delay in the acquisition of the vehicle by the complainant, he could not go for the engine. That when the complainant eventually obtained the vehicle, and he assessed the engine in the vehicle, he realized that the engine in the vehicle can be fixed therefore he spoke to the complainant about that who agreed so that he would go for the money that was used to purchase the new engine.
The accused person tendered the receipts of payments of the purchase of the Mitsubishi engine as well as receipts of payments on items bought for the fixing of the Mitsubishi engine and its related cost. The accused person also called two witnesses who confirmed his testimony given in his defence.

DW2 testified that he is the one the accused person bought the engine from and the accused duly paid for same which he issued the accused with a receipt. That the accused person did not pick up the engine from the shop for about three to four months. That when the accused person was arrested, he offered to speak to the police and informed them that the engine for which the accused had been charged, had been paid for and sitting in his shop; and that it was available for inspection. That he is the same vendor that supplied the accused person with the items needed to fix the old engine.

Under cross examination, DW1 was made to produce his receipt book upon an application by the prosecutor, and the said receipt book was subsequently tendered in evidence by the prosecutor as exhibit 'C'. The prosecution sought to discredit the evidence adduced by DW2 on the issuance of the receipts tendered by the accused person as exhibits '1' to '3' particularly the receipts marked exhibits '1' and '2' due to the serial

numbers on the said receipts that are not chronological as they are not consistent with the dates on the said receipts. However, DW2 maintained his position that he was speaking the truth. DW2 explained that for their kind of business they issue receipt without taking note of the order in which it is placed in the booklet so if someone comes to buy an item, they issue any receipt they find in the booklet.

A careful perusal of exhibit 'C' indicates that the receipts tendered by the accused person as exhibits '1' and '2' were actually issued by DW2. Another striking indication from the examination of exhibit 'C' suggests that the receipts from the said booklet were not issued chronologically therefore the serial numbers on the receipts are not consistent with the dates on the receipts. For instance, a receipt in exhibit 'C' with a serial number 0000282 in the name of Mr. Mawutor has the date 15th July 2023 whilst a receipt in the same booklet with a serial number 0000283 in the name of Torgbui Agbo III has the date 12th July 2022. There are other subsequent receipts with serial number 0000297 dated 28th June 2003 and serial number 0000298 dated 12th June 2023 with the names of the respective customers and the amount paid.

From the above analysis of exhibit 'C', it can be clearly and safely concluded that the shop of DW2 being Yebo's Enterprise (as he testified under cross examination as being the name on his receipt book), does not issue receipt according to the chronology of the book's serial numbers but just issue any available page in the receipt book randomly. Therefore, it is the usual happening in that shop and so DW2 cannot be said to be untruthful because of the inconsistencies in the serial numbers and dates on exhibits '1' and '2'.

Now considering the entire evidence on record, I find that the accused person has been able to explain that he did not dishonestly appropriate the complainant's money as he

has been able to raise reasonable doubt as to his guilt. On the balance of probability, I find that the defence of the accused person is reasonably probable because the entire evidence on record does not sufficiently suggest that the accused person did not buy the engine and went into hiding as some parts of the brief facts of the case has stated.

In the case of ***Commissioner of Police v. Isaac Antwi* [1961] GLR 408-412,** it was held that the accused person is not required to prove anything. All that is required of him is to raise a reasonable doubt as to his guilt.
This is further emphasized by ***sections 11(3) and 13(2) of the Evidence Act, 1975 (NRCD 323).***

As stated supra the accused person has been able to raise a reasonable doubt as to his guilt, as required of him.

In the case of ***Amartey v. The State* [1964] GLR 256-262 @ 260**, Ollennu JSC stated the following principle:

> "*To do justice, the court is under a duty to consider firstly, the version of the prosecution applying it to all the tests and principles governing the credibility and veracity of a witness; and it is only when it is satisfied that the particular prosecution witness is worthy of belief that it should move on to the second stage, i.e. the credibility of the defendant's story; and if having so tested the defence story it should disbelieve it, move on to the third stage, i.e. whether short of believing it, the defence story is reasonably probable*."

The prosecution has not been able to prove beyond reasonable doubt from the entire evidence adduced before this Court that the accused person indeed dishonestly appropriated the amount of GHS19,000.00 belonging to the complainant. This is because

from the entire evidence on record, I find the defence of the accused person as reasonably probable.

CONCLUSION

Crabbe J.S.C. in the case of ***The State v. Sowah and Essel*** **[1961] GLR 743-747, S.C.** held that:

> "*A judge must be satisfied of the guilt of the crimes alleged against an accused person only on consideration of the whole evidence adduced in the case; and only then can he convict*".

From the foregoing, the evidence of the accused person and his witnesses has been able to raise a reasonable doubt as to his guilt.

Having examined the entire evidence in this case and having also relied on the authorities listed above, it is my considered opinion that putting all the evidence on record together, I find the explanation offered by the accused person to be reasonably probable. On the totality of the evidence on record, I am not satisfied of the guilt of the accused person as I find that the prosecution has not been able to prove beyond reasonable doubt that the accused person actually dishonestly appropriated the complainant's GHS19,000.00, as there are doubts in the mind of the court considering the entire evidence.

Accordingly, the accused person herein, ***William Boateng*** is hereby acquitted and discharged.

The complainant may take a civil suit to pursue the claim of the said GHS19,000.00.

[SGD.]

H/H AKOSUA A. ADJEPONG (MRS)

(CIRCUIT COURT JUDGE)